

Form No.HCJD/C-121

**ORDER SHEET**

IN THE LAHORE HIGH COURT, BAHAWALPUR BENCH,  
BAHAWALPUR  
**JUDICIAL DEPARTMENT**

**ICA No. 06 of 2025**

Hamza Khalid  
**vs.**  
Govt. of Punjab through Deputy Commissioner, Bahawalnagar & another

| S.No. of<br>Order/<br>Proceeding | Date of<br>order/<br>proceeding | Order with signature of Judge and that of parties or<br>counsel where necessary |
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| 04.02.2025 | Rana Ahtisham Shaukat, Advocate for appellant.<br>Rai Mazhar Hussain Kharal, Assistant Advocate General,<br>Punjab. |
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This consolidated order shall decide instant appeal alongwith ICA No.07 of 2025/BWP, as common question of law and facts is involved.

2. The brief facts of the case are that the appellants filed their respective representations, seeking appointment under Rule 17-A of Punjab Civil Servants (Appointment and Conditions of Service) Rules, 1974 (“**Rules**”), which have been dismissed on the ground that as per policy, the said Rule has been omitted. Feeling aggrieved of the said order, the appellants filed constitutional petitions, which have also been dismissed by learned Single Judge in Chambers vide order dated 13.12.2024 on the ground that quota for appointment in service has been declared as *ultra vires* by relying upon Civil Petition No. 3390 of 2021 titled “**General Post Office, Islamabad and others vs. Muhammad Jalal**”.

3. It is pertinent to note here that previous to the said judgment, in WP No. 134441 of 2024 titled “**Syed Noor-ul-Hadi Shah vs. Government of Punjab etc**” it has been observed that Rule 17-A of the Rules had been deleted through notification dated 24.07.2024 and said deletion did not have retrospective effect. The learned Single Judge while referring CP No. 3390 of 2021 observed that

in view of the said case, the order passed by learned Single Judge in WP No.134441 of 2024 was of no legal effect and dismissed the constitutional petitions. However, we are not in agreement with the said observation made by the learned Single Judge for the reason that superior courts in many judgments have already declared that rights created prior to passing of a judgment cannot be taken away by retrospective operation of the said judgment. The judgment passed by Supreme Court in CP No.3390 of 2021 does not declare the right to be considered for appointment under Rule 17-A of the Rules as *void ab initio*, therefore, interpretations by the learned Single Judge through the impugned order were not applicable to the instant case for the reason that in the matter arising out of ICA No.06 of 2025 Muhammad Khalid Mehmood (*patwari*), father of the appellant had died during service on 19.09.2019 and the appellant on attaining the age of majority i.e. 21 years filed application for being considered for appointment at the post of *patwari* lying vacant in Chishtian, whereas in ICA No.07 of 2025, Muhammad Shafiq (*patwari*), father of the appellant retired on medical ground on 19.09.2019 and after attaining the age of majority i.e. 21 years, he applied for being considered for the post of *patwari*. The right of both the appellants to be considered for appointment has matured prior to 24.07.2024 when the notification for repeal of Rule 17-A of the Rules was issued, therefore, the representations filed by the appellants could not have been dismissed for repeal of law subsequent to the same.

4. In view of the above, by **allowing** both the appeals, the order dated 13.12.2024 passed by learned Single Judge is **set-aside** with the result that impugned order dated 16.11.2024, rejecting representations of the appellants for appointment under Rule 17-A of the Rules is also **set-aside** and matter stands remanded to the

respondent/A.C., Chishtian, District Bahawalnagar where the same shall be deemed to be pending for decision on their representations on its own merits in accordance with law.

**(ASIM HAFEEZ)**  
Judge

**(MUZAMIL AKHTAR SHABIR)**  
Judge

Naveed \*

**APPROVED FOR REPORTING:**